



CHAPTER cx.

An Act to empower the mayor aldermen and citizens of the city of Coventry to construct waterworks street works an improvement of the river Sherbourne and an extension of the Corporation's new cemetery and for other purposes. A.D. 1928.
[3rd August 1928.]

WHEREAS the city of Coventry (hereinafter called "the city") is under the management and local government of the mayor aldermen and citizens of the city (in this Act called "the Corporation"):

And whereas the Corporation are the owners of the waterworks which supply water throughout the city and in a considerable area outside the city:

And whereas in order to enable the Corporation to meet the increased demand for water within the area supplied by them and to improve their water undertaking it is expedient that they should be empowered to make and maintain the waterworks by this Act authorised:

And whereas it is expedient to empower the Corporation to construct the street works by this Act authorised:

And whereas in order to prevent flooding it is expedient to enable the Corporation to construct the improvement of the river Sherbourne in the city by this Act authorised:

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And whereas the burial grounds and cemeteries vested in and belonging to the Corporation are maintained and managed by the Corporation under the provisions of the Act of 7 & 8 Vict. c. lxxvi and it is expedient that such burial grounds and cemeteries should be maintained and managed under the provisions of the Public Health (Interments) Act 1879 :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows :—

For and in connection with the purchase of lands and easements - - -	£ 55,000
For and in connection with the construction of the waterworks authorised by this Act - - - - -	225,000
For the provision of mains and other purposes of the water undertaking of the Corporation - - - - -	103,000
For and in connection with the construction of the street works authorised by this Act - - - - -	65,260
For and in connection with the improvement of the river Sherbourne authorised by this Act - - - - -	9,500
For and in connection with the laying out of the cemetery extension authorised by this Act - - - - -	5,340

And whereas the works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas by reason of the increased cost of labour and materials due to the late war and of other circumstances beyond the control of the Corporation the estimate of expense for the construction of the service tank at Coundon authorised by the Coventry Corporation Act 1907 will be insufficient and it is expedient to authorise

the Corporation to borrow further money for and in connection with the construction of the said service tank : A.D. 1928.
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And whereas since the deposit of the Bill for this Act the boundaries of the city have been altered and certain of the lands and works shown on the deposited plans and described in the deposited book of reference as in the county of Warwick are now within the city :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Warwick and are hereinafter respectively referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

1. This Act may be cited as the Coventry Corporation Act 1928. Short title.

2. The following enactments (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely) :— Incorporation of Acts.

(1) The Lands Clauses Acts with the following exception and modification :—

(a) Section 127 of the Lands Clauses Consolidation Act 1845 (relating to the sale of superfluous lands) is not incorporated with this Act;

(b) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the corporate seal of the Corporation and shall be sufficient without the addition of the sureties mentioned in that section :

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(2) The Waterworks Clauses Act 1847 except—

(a) the words “with the consent in writing
“ of the owner or reputed owner of any such
“ house or of the agent of such owner ” in
section 44;

(b) sections 75 to 82 (with respect to the
amount of profit to be received by the under-
takers when the waterworks are carried on
for their benefit); and

(c) section 83 (with respect to the yearly
receipt and expenditure of the undertakers):

(3) The Waterworks Clauses Act 1863.

Interpreta-
tion.

3.—(1) In this Act the several words and expressions
to which meanings are assigned by the Acts wholly or
partially incorporated herewith or by the Public Health
Acts 1875 to 1925 have the same respective meanings
unless there be something in the subject or context
repugnant to such construction.

(2) In this Act unless the subject or context otherwise
requires—

“ The Corporation ” means the mayor aldermen and
citizens of the city of Coventry;

“ The city ” means the city of Coventry;

“ The council ” means the council of the city;

“ The general rate fund ” and “ the general rate ”
mean respectively the general rate fund and the
general rate of the city or until the date when
the first new valuation list made under Part II
of the Rating and Valuation Act 1925 comes
into force in the city the borough fund and the
borough rate of the city;

“ The county ” means the county of Warwick;

“ The Lands Clauses Acts ” means the Lands Clauses
Acts as modified by the Acquisition of Land
(Assessment of Compensation) Act 1919 and
by this Act;

“ The water limits ” means the limits for the time
being of the Corporation for the supply of
water;

“ The tribunal ” means the tribunal or other autho-
rity to whom any question of disputed purchase

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money or compensation under this Act or any Act applied to this Act is referred in pursuance of the Acquisition of Land (Assessment of Compensation) Act 1919;

“The Act of 1900” “the Act of 1907” “the Act of 1911” “the Act of 1920” and “the Act of 1927” mean respectively the Coventry Corporation Act 1900 the Coventry Corporation Act 1907 the Coventry Corporation Act 1911 the Coventry Corporation Act 1920 and the Coventry Corporation Act 1927;

“The Act of 1879” means the Public Health (Interments) Act 1879 and the Acts incorporated therewith or applied thereby and any Acts amending or extending the same;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 (Definitions) of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed.

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Power to
make water-
works.

4.—(1) Subject to the provisions of this Act the Corporation may make and maintain in the lines and situations and according to the levels shown upon the deposited plans and sections and upon the lands delineated on those plans and described in the deposited book of reference the following waterworks (namely):—

In the county—

Waterwork No. 1 A service reservoir in the parish of Meriden in the rural district of Meriden in the enclosures numbered 228 and 637 on the $\frac{1}{2500}$ Ordnance map of the said parish (edition 1925 Warwickshire sheet No. XXI.-1);

Waterwork No. 2 A waste water conduit in the said parish of Meriden commencing in the said Waterwork No. 1 and terminating in the said enclosure numbered 637 on the said map;

Waterwork No. 3 A service reservoir in the parish of Keresley in the rural district of Foleshill in the enclosures numbered 7 and 26 on the $\frac{1}{2500}$ Ordnance map of the said parish (edition 1925 Warwickshire sheet No. XVI.-11);

Waterwork No. 4 A waste water conduit in the said parish of Keresley commencing in the said Waterwork No. 3 and terminating in the stream to the east of the enclosure numbered 11 on the last-mentioned map:

Partly in the county and partly in the city (but shown on the deposited plans and described in the deposited book of reference as wholly in the county)—

Waterwork No. 5 An aqueduct comprising one or more lines of pipes commencing in the said parish of Meriden in the said Waterwork No. 1 and terminating in the said parish of Keresley in the said Waterwork No. 3:

In the county—

Waterwork No. 6 A well or wells and pumping station with adits in the parish of Coundon in the rural district of Meriden in

the enclosure numbered 72 on the $\frac{1}{2500}$ A.D. 1928.
Ordnance map of that parish (edition 1925
Warwickshire sheet No. XXI.-3);

Waterwork No. 7 A waste water conduit
in the said parish of Coundon commencing in
the said Waterwork No. 6 and terminating in
the watercourse in the said enclosure numbered
72 on the last-mentioned map;

Waterwork No. 8 An aqueduct comprising
one or more lines of pipes commencing in
the parish of Corley in the rural district of
Meriden in the lane numbered 386 on the $\frac{1}{2500}$
Ordnance map of the said parish (edition
1925 Warwickshire sheet No. XVI.-11) and
terminating in the said parish of Keresley at
the junction of Watery Lane with the road
numbered 158 on the $\frac{1}{2500}$ Ordnance map
of the said parish (edition 1925 Warwickshire
sheet No. XVI.-15);

Waterwork No. 9 An additional well or
additional wells or shaft or shafts with
pumping station in the said parish of Keresley
at the existing pumping station in that
parish:

In the city—

Waterwork No. 10 A water tower in the
enclosure numbered 646 on the $\frac{1}{2500}$ Ordnance
map of the city (edition 1925 Warwickshire
sheet No. XXI.-15);

Waterwork No. 11 A waste water conduit
commencing at the said Waterwork No. 10
and terminating in the stream in the enclosure
numbered 421 on the $\frac{1}{2500}$ Ordnance map
of the city (edition 1925 Warwickshire sheet
No. XXI.-11):

In the city (but shown on the deposited plans
and described in the deposited book of reference
as commencing in the parish of Allesley in the
rural district of Meriden in the county)—

Waterwork No. 12 An aqueduct com-
prising one or more lines of pipes commencing

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by a junction with the said Waterwork No. 5 and terminating at the said Waterwork No. 10:

In the city—

Waterwork No. 13 An aqueduct comprising one or more lines of pipes commencing in the said Waterwork No. 10 and terminating by a junction with the existing aqueduct of the Corporation at the junction of Beechwood Avenue and Rochester Road:

In the county—

Waterwork No. 14 A water tower in the parish of Stoneleigh in the rural district of Warwick in the enclosure numbered 924 on the $\frac{1}{2500}$ Ordnance map of that parish (edition 1925 Warwickshire sheet No. XXVI.-1);

Waterwork No. 15 A waste water conduit in the said parish of Stoneleigh commencing in the said Waterwork No. 14 and terminating in the watercourse in the enclosure numbered 923 on the last-mentioned map:

Partly in the county and partly in the city (but shown on the deposited plans and described in the deposited book of reference as wholly in the county)—

Waterwork No. 16 An aqueduct comprising one or more lines of pipes commencing in the said parish of Allesley by a junction with an existing aqueduct of the Corporation at the junction of Oak Lane and the Birmingham and Coventry main road and terminating in the said parish of Stoneleigh in the said Waterwork No. 14:

In the city (but shown on the deposited plans and described in the deposited book of reference as wholly in the said parish of Stoneleigh in the county)—

Waterwork No. 17 An aqueduct comprising one or more lines of pipes commencing by a junction with the said Waterwork No. 16 and terminating by a junction with the said Waterwork No. 12;

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Waterwork No. 18 A well or wells and pumping station with adits in the enclosures numbered 1074 and 1076 on the $\frac{1}{2500}$ Ordnance map of the said parish of Stoneleigh (edition 1925 Warwickshire sheet No. XXI.-10);

Waterwork No. 19 An aqueduct comprising one or more lines of pipes commencing in the said Waterwork No. 18 and terminating by a junction with the said Waterwork No. 17;

Waterwork No. 20 A waste water conduit commencing in the said Waterwork No. 18 and terminating in the stream in the enclosure numbered 1075 on the $\frac{1}{2500}$ Ordnance map of the said parish of Stoneleigh (edition 1925 Warwickshire sheet No. XXI.-10).

(2) In addition to the waterworks hereinbefore described the Corporation may upon any lands for the time being belonging to them or in or over which they have or obtain easements make and maintain all such buildings tanks machinery roads tramroads works and apparatus of whatever character as may be necessary or convenient in connection with or subsidiary to the said waterworks or necessary for inspecting maintaining repairing cleansing managing working or using the same but nothing in this subsection shall exonerate the Corporation from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them.

5.—(1) In the construction of the waterworks authorised by this Act the Corporation may deviate to any extent not exceeding the limits of deviation shown on the deposited plans (and where on any street or road no such limits are shown the boundaries of such street or road shall be deemed to be such limits) and they may also deviate from the levels shown on the deposited sections to any extent.

Power to deviate in construction of water-works.

(2) Provided that except for the purposes of crossing over a stream or railway no part of the aqueducts authorised by this Act shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections.

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Period for
completion
of water-
works and
enlargement
of works.

6.—(1) If the waterworks authorised by this Act and shown on the deposited plans and sections are not completed by the thirty-first day of December nineteen hundred and thirty-eight then subject to the provisions of subsection (2) of this section the powers granted by this Act for constructing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

(2) The Corporation may extend enlarge alter reconstruct renew or remove any of the waterworks and plant constructed under this Act and in the case of the aqueducts authorised by this Act lay down additional lines of pipes as and when occasion may require.

For protec-
tion of
London
Midland and
Scottish
Railway
Company.

7. The following provisions for the protection of the London Midland and Scottish Railway Company (in this section referred to as "the company") shall unless otherwise agreed between the company and the Corporation apply and have effect in relation to the waterworks authorised by this Act (that is to say):—

(1) The Corporation shall not under the powers of this Act without the previous consent of the company purchase or acquire by compulsion any lands or property of the company upon which Waterworks No. 11 No. 12 and No. 16 (in this section referred to as "the authorised waterworks") may be constructed but the Corporation may purchase and acquire and the company shall sell and grant accordingly an easement or right of using so much of the lands works and property of the company as may be required for the construction and maintenance of the authorised waterworks:

(2) The authorised waterworks shall be carried under the property of the company by means of steel pipes surrounded by concrete at a depth of not less than three feet below the level of the rails of the company's railways and so as not to interfere with the drainage of the railways:

(3) The authorised waterworks shall be executed under the superintendence if the same be given and to the reasonable satisfaction of the principal engineer of the company and according to plans to be submitted to and in such manner as shall

be previously reasonably approved by him and in all things by and at the expense of the Corporation provided that if the said engineer shall not express his disapproval of the said plans within twenty-one days of the submission thereof he shall be deemed to have approved thereof :

- (4) Before commencing the construction of any of the authorised waterworks under or across the railways works and property of the company the Corporation shall give to the company fourteen days' notice in writing except in cases of emergency in which case such notice as is reasonably practicable shall be given :
- (5) The Corporation shall restore and make good the roads over any level crossings and approaches which the company are or may be liable to maintain and which may be disturbed or interfered with by or owing to any operations of the Corporation and all the works matters and things aforesaid shall be constructed executed and done so as not to cause any injury to the railways level crossings approaches lands or property of the company or interruption to the passage or conduct of traffic over such railways or at any station thereon :
- (6) If any such injury or interruption as aforesaid shall arise from or be in any way owing to the construction repair renewal bursting leakage or failure of the authorised waterworks or to any of the acts operations matters and things in connection therewith and if there should be any interference with the passage or conduct of traffic on the railways of the company caused thereby the Corporation shall at their own cost and free of all expense to the company execute and do all such works as may be necessary to remove the cause of interference or the company at their option may enter upon the works of the Corporation and execute all such works and do all such things as may be necessary to remove such interference and in that event the Corporation shall repay to the company all reasonable costs and expenses incurred by them in connection therewith :

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(7) The Corporation shall indemnify the company from all damages or compensation which may be recovered from them by reason of any such interference as is referred to in the last preceding subsection or by reason of any accident so far as such accident shall have been occasioned by or through the act or default of the Corporation or those for whom they are responsible :

(8) The Corporation shall bear and on demand pay to the company the reasonable expense of the employment by the company during the construction repair or renewal of the authorised waterworks under or across the railways or other property of the company of a sufficient number of inspectors signalmen or watchmen for watching and protecting the said railways and other property and the conduct of the traffic thereon with reference to and during the construction of the authorised waterworks and for preventing as far as may be all interference obstruction danger or accident from any of the operations or from the acts or defaults of any person or persons in the employment of the Corporation or their contractors and the Corporation shall also pay to the company the reasonable expense incurred by them in connection with any extra precautions which may be necessary for the safety and working of the traffic and protection of their property on account of the construction repair or renewal of the authorised waterworks under or across the railways or other property of the company :

(9) Any additional expense which the company may reasonably and properly incur in connection with their railways or other works or the widening or alteration thereof under their existing powers by reason of the existence of the authorised waterworks shall be paid by the Corporation :

(10) If the company within fourteen days from the approval of the plans required by subsection (3) of this section give to the Corporation notice in writing that they themselves desire to execute so much of the authorised waterworks

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(other than the actual laying down and repair of the pipes) as will be situate on the lands and property of the company the company may execute the works under the superintendence of and to the reasonable satisfaction of the engineer to the Corporation and may recover from the Corporation the reasonable expenses incurred by the company in connection therewith :

- (11) Any dispute or difference which may arise between the Corporation and the company with reference to the provisions of this section or in any way arising thereout shall failing agreement be settled by arbitration by an engineer to be agreed upon between the Corporation and the company or failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject thereto the Arbitration Act 1889 shall apply to any such arbitration.

8. The Corporation may collect impound take use divert and appropriate for the purposes of their water-works all such underground springs and waters as will or may be intercepted by the wells and pumping stations and works connected therewith by this Act authorised.

Power to
take waters.

9. The Corporation shall not construct any works for taking or intercepting water from any lands acquired by them unless the works are authorised by and the lands upon which the same are to be constructed are specified in this or some other Act of Parliament.

Limiting
powers of
Corporation
to abstract
water.

10.—(1) If it shall be proved by the owner (which term shall include any lessee or occupier) that the pumping by the Corporation at Work No. 6 or Work No. 9 by this Act authorised has caused any diminution of the quantity of water yielded at the date of the passing of this Act by any well borehole or spring of the owner then used as an effective source of supply for the purposes of the owner such well borehole or spring being situate within a radius of one mile from the work the pumping at which shall have been proved by the owner to have caused such diminution the Corporation shall upon the written request of the owner afford to the owner a supply of water equal to the amount of the diminution

Provision
where local
sources of
supply
affected.

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(2) The Corporation may if they think fit in lieu of making good the diminution so proved deepen any affected well or borehole or make such borings therein or headings therefrom as will increase the supply from the said well or borehole so as to make good the diminution so proved and the owner shall without making any charge therefor give the Corporation access and every facility for carrying out such deepenings borings or headings and in the event of any such deepenings borings or headings increasing the cost of obtaining or continuing to obtain from the said well or borehole the quantity of water yielded at the date of the passing of this Act the Corporation shall pay to the owner the amount of such increase.

(3) The Corporation shall also make compensation in money for any injury caused to the owner by the exercise by the Corporation of the powers conferred by the last preceding subsection the amount of such compensation to be settled in case of difference by arbitration as hereinafter provided.

(4) (a) The owner shall afford the officers servants or other representatives of the Corporation at all reasonable times after the passing of this Act access to the source of supply in respect of which any claim is or may be made under this section for the purpose of ascertaining particulars thereof and the levels of the water therein.

(b) The Corporation within three days after they shall have ascertained any such particulars and levels shall send a memorandum thereof by post in a registered letter addressed with a sufficient direction to the owner at his usual place of abode and if the owner shall not within one month after such letter has been so sent give notice in writing to the Corporation that he does not accept such particulars and levels as correct he shall be deemed to have agreed that they are correct.

(5) The Corporation shall not be liable in respect of any claim made by the owner under this section if he shall after reasonable demand have continued to refuse to afford to the officers servants or other representatives of the Corporation at all reasonable times after the passing of this Act access to the source of supply in respect of which the claim is made for the purpose of ascertaining particulars thereof and the levels of the water therein.

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(6) Any question or dispute arising under this section shall be referred to and determined by a single arbitrator to be agreed upon between the parties or in default of agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers.

11. The Corporation may make and carry into effect agreements with the owners lessees and occupiers of any lands surrounding the wells and pumping stations and works by this Act authorised with reference to the execution by the Corporation or such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of the waters by this Act authorised to be taken collected or appropriated by the Corporation by such wells and pumping stations and works.

Power to agree as to drainage of lands &c.

12. The Corporation may under the powers of this Act purchase acquire and hold any lands which they may deem necessary for the purpose of protecting their waterworks against pollution fouling and contamination and so long as such necessity shall continue such lands shall not be deemed to be superfluous lands within the meaning of this Act or the Lands Clauses Acts respectively but the Corporation shall not create or permit a nuisance on any such lands and shall not erect any buildings thereon other than offices and dwellings for persons in their employ and such buildings and works as may be incident to or connected with their water undertaking.

Power to purchase lands for protection of water-works.

13.—(1) For the purpose of constructing enlarging extending altering repairing cleansing or examining any of the waterworks of the Corporation authorised by this Act the Corporation may cause the water in any such works to be temporarily discharged into any available stream or watercourse.

Temporary discharge of water into streams.

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(2) In the exercise of the power conferred by this section the Corporation shall do as little damage as may be and shall pay compensation to all persons for all damage sustained by them by the exercise of such power the amount of compensation to be settled in default of agreement by arbitration in accordance with the provisions of the Arbitration Act 1889 :

Provided always that the powers conferred by this section shall not be exercised so as to damage or to injuriously affect the railways or works of a railway company.

As to powers
under sec-
tion 12 of
Waterworks
Clauses Act
1847.

14. In addition to the works authorised by this or any previous Act or Order relating to their water undertaking the Corporation may on all or any of the lands for the time being held by them in connection with their water undertaking execute for the purposes thereof or in connection therewith any of the works (other than wells and works for the taking and intercepting of water) and exercise any of the powers mentioned in or conferred by section 12 (Undertakers subject to provisions of this and the special Act may execute the works herein named) of the Waterworks Clauses Act 1847 :

Provided that the Corporation shall not under the powers of this section create or permit the creation or continuance of any nuisance on any such lands.

Further
powers in
relation to
water
mains.

15. The Corporation shall have and may exercise within the water limits the powers which a local authority have under section 54 (Power of carrying mains) of the Public Health Act 1875 with respect to the carrying of water mains within and without their district and for the purposes of that section the said limits shall be deemed to be the district of the Corporation :

Provided that the Corporation shall not exercise such powers under over or across any lands or property belonging to a railway company and used for the purposes of their undertaking without the consent of such company which consent shall not be unreasonably withheld and any question which may arise under this section between the Corporation and any railway company shall be referred to arbitration under the Arbitration Act 1889 the arbitrator unless otherwise agreed being appointed by the President of the Institution of Civil Engineers.

16. The waterworks to be constructed by the Corporation under the authority of this Act shall for all purposes be deemed part of the water undertaking of the Corporation.

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Waterworks
to form part
of water
undertaking.

17. Subject to the provisions of this Act the Corporation may make and maintain in the lines and situations and upon the lands shown on the deposited plans and described in the deposited book of reference and according to the levels shown on the deposited sections the works in the city described in this section with all proper and necessary junctions connections approaches abutments embankments bridges retaining walls sewers drains works and conveniences in connection therewith (namely) :—

Power to
make street
works
bridge and
river im-
provement
work.

Street Work No. 1 An alteration and improvement of Holbrook Lane and Lockhurst Lane including a bridge carrying those streets over the London Midland and Scottish Railway at Foleshill Station (but shown on the deposited plans and described in the deposited book of reference as partly in the city and partly in the parish of the Holy Trinity Without Coventry in the rural district of Coventry in the county);

Street Work No. 2 A widening and improvement of Holbrook Lane on the westerly side (but shown on the deposited plans and described in the deposited book of reference as partly in the city and partly in the said parish of the Holy Trinity Without Coventry);

Street Work No. 3 A widening and improvement of Hertford Street on the eastern side;

Street Work No. 4 A widening and improvement of Greyfriars Lane on both sides;

Street Work No. 5 An improvement of Narrow Lane on the eastern side;

Street Work No. 6 An improvement of Narrow Lane on the western side;

Street Work No. 7 A new road being a diversion of Green Lane and Mile Lane (but shown on the deposited plans and described in the deposited book of reference as in the parish of St. Michael Without Coventry in the rural district of Coventry in the county);

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River Improvement Work An improvement of the course of the river Sherbourne under and near the Smithfield Market.

Limits of deviation for street works and river improvement.

18. In the construction of the street works and river improvement work authorised by this Act the Corporation may deviate to any extent not exceeding the limits of deviation shown on the deposited plans and they may also deviate from the levels shown on the deposited sections to any extent not exceeding three feet upwards or downwards.

Power to make subsidiary works in connection with works.

19.—(1) Subject to the provisions of this Act and within the limits of deviation shown on the deposited plans the Corporation in connection with and for the purposes of this Act and as part of the works to be executed under the powers of this Act may execute or do any of the following works or things (namely):—

- (a) make junctions and communications with any existing streets intersected or interfered with by or contiguous to the street works authorised by this Act or any of them and divert widen or alter the line or alter the level of any existing street for the purpose of connecting the same with any of such works or otherwise;
- (b) execute any works for the protection of any adjoining land or buildings;
- (c) execute any works and do any things necessary for the strengthening and supporting of any walls of adjoining buildings culverts or bridges; and
- (d) raise lower alter divert stop up or otherwise interfere with any tramway drain sewer channel or gas or water main or pipe or electrical wire or apparatus within the said limits providing a proper substitute before interrupting the traffic on any such tramway or the flow of sewage in any drain or sewer or of any gas or water in any main or pipe or of electrical or telephonic communication in any wire or apparatus;

and shall make compensation for any damage done by them in the execution of the powers of this section.

(2) Provided that the Corporation shall not raise lower alter divert stop up or otherwise interfere with

any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the said Act. A.D. 1928. —

20. Subject to the provisions of this Act the Corporation may enter on take and use for and in connection with the construction of the works authorised by this Act or for the purpose of providing space for the erection of buildings adjoining or near to the street works or for other the purposes of this Act such of the lands in the city and the county delineated on the deposited plans and described in the deposited book of reference as they may require. Power to take lands.

21. The powers of the Corporation for the compulsory purchase of the lands for the purposes of this Act shall cease in respect of lands for the purposes of the construction of the street works authorised by this Act after the thirty-first day of October nineteen hundred and thirty-three and in respect of all other purposes of this Act after the thirty-first day of October nineteen hundred and thirty-one. Period for compulsory purchase of lands.

22. The following provisions for the protection of the London Midland and Scottish Railway Company (in this section referred to as "the company") shall unless otherwise agreed in writing between the company and the Corporation apply and have effect in relation to the exercise of the powers of this Act (that is to say):— For further protection of London Midland and Scottish Railway Company.

- (1) The Corporation shall not under the powers of this Act without the previous consent of the company purchase or acquire by compulsion any lands or property of the company :
- (2) On the completion of the street works Nos. 1 and 2 (hereinafter referred to as "the street works") the level crossing over the company's railway at Foleshill Station shall be closed and the site thereof shall vest in the company for the purposes of their undertaking :
- (3) The Corporation shall before they commence the construction of so much of the street works as shall or may pass over adjoin or in any way affect the railway works and property of the company submit to the principal engineer of

A.D. 1928.
—

the company (in this section called "the principal engineer") plans sections and specifications of the street works for the reasonable approval of the principal engineer and on such plans shall show the stages by which it is intended to carry out the street works. Provided that if within twenty-one days from the submission of such plans sections and specifications the principal engineer does not signify to the Corporation his disapproval thereof and his requirements in regard thereto he shall be deemed to have approved thereof:

- (4) The street works shall be constructed only according to such plans sections and specifications as shall be approved or deemed as aforesaid to be approved by the principal engineer or determined by arbitration and shall be constructed under the superintendence (if given) and to the reasonable satisfaction of the principal engineer:
- (5) If it shall be reasonably necessary at any time (either before or during the construction or within five years after the completion of the street works or any part thereof and in consequence of such construction) that any further or other works or appliances be constructed or measures of precaution taken either by way of addition to the existing works of the company or in connection with the street works or in relation to the method of construction of the street works so as to prevent the subsidence of or injury to any of the railways works or property of the company the Corporation shall on being thereunto reasonably required in writing under the hand of the principal engineer make and execute at their own expense and according to plans sections and specifications to be prepared by him and reasonably approved by the surveyor to the Corporation such works or take such measures of precaution including the temporary cessation of the construction of the street works as the principal engineer shall reasonably require. The construction of the street works when commenced shall proceed

without cessation except as aforesaid and with all reasonable dispatch : A.D. 1928.
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- (6) Notwithstanding the approval of plans and sections and specifications or supervision by or completion to the satisfaction of the principal engineer as aforesaid and notwithstanding the compliance by the Corporation with the provisions of this section if during and in consequence of the execution of the street works the said railway of the company or any of the works connected therewith or any property of the company shall be injured or damaged the company shall be entitled forthwith to make good such injury or damage and may recover the amount reasonably expended in so doing from the Corporation :
- (7) The Corporation shall not in executing the street works in any manner obstruct hinder or interfere with the free uninterrupted and safe user of the railway and property of the company or any traffic thereon and if at any time or times hereafter the free and uninterrupted user of the railway of the company or any traffic thereon shall be obstructed hindered or interfered with by the Corporation contrary to this enactment the Corporation shall notwithstanding any approval as aforesaid pay to the company all reasonable costs and expenses to which the company may be put and compensation for the loss sustained by the company by reason of any such interruption or interference :
- (8) Notwithstanding anything contained in this Act the Corporation shall be responsible for and make good to the company all costs charges losses damages and expenses which may be occasioned to their railways works or property or to any person or persons using the same by reason of the construction alteration or maintenance of the street works or of the failure of any part thereof repairable by the Corporation or of any act or omission of the Corporation or of any of the persons in their employment or of their contractors and the Corporation

A.D. 1928.
—

shall effectually indemnify and hold harmless the company from all claims and demands upon or against them by reason of such construction alteration maintenance failure or omission :

- (9) During the construction of the street works and of any of the further works mentioned in this section the Corporation shall bear and on demand pay to the company the reasonable expense of the employment by them of such inspectors and watchmen (if any) to be appointed by the company as may be reasonably necessary for inspecting the street works and further works as aforesaid and for watching their railway and the works and conveniences connected therewith in order to prevent as far as may be all interference obstruction danger and accident arising from any of the operations of the Corporation or from the acts or defaults of their contractors or of any person or persons in their employment and the Corporation shall at all times give ample facilities to the principal engineer and his assistants or inspectors for full and free access to the said street works during or after construction and shall also furnish him or them with every information he or they may reasonably require with regard to such street works or the method of construction thereof :
- (10) If by reason of the construction of the street works it shall become necessary in the opinion of the principal engineer to add to or alter any signal or signal apparatus or telegraphs on the railway of the company the same shall be so added to or altered by the company and the reasonable expense thereof shall be repaid by the Corporation to the company :
- (11) Any difference which shall arise between the Corporation and the company or their respective engineers under this section other than subsection (1) thereof shall be referred to and determined by an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject thereto the provisions of the

Arbitration Act 1889 shall apply to any such arbitration. A.D. 1928.

23. The following provisions of the Act of 1907 the Act of 1911 the Act of 1920 and the Act of 1927 shall so far as they are applicable for the purpose extend and apply with the necessary modifications to this Act :—

Application
of provisions
of Acts of
1907 1911
1920 and
1927.

The Act of 1907—

Section 18 (Reservation of water rights &c. on sale);

Section 21 (Application of Waterworks Clauses Act 1847 to conduits discharge pipes and telephones);

Section 22 (For protection of Postmaster-General).

The Act of 1911—

Section 10 (Correction of errors &c. in deposited plans and book of reference);

Section 11 (Owners may be required to sell parts only of certain lands and buildings) Provided that in the application of the said section it shall be read and have effect as if the properties described in the schedule to this Act were therein referred to instead of the properties mentioned in the schedule to the Act of 1911;

Section 12 (Provisions as to compensation) Provided that in the application of the said section it shall be read and have effect as if the words “the twentieth day of November
“nineteen hundred and twenty-
“seven” were inserted therein instead of the words “the first day
“of January one thousand nine
“hundred and eleven”;

Section 13 (Costs of arbitration &c. in certain cases);

Section 15 (Persons under disability may grant easements &c.);

Section 17 (Proceeds of sale of surplus lands).

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The Act of 1920—

Section 8 (Power to retain sell &c. lands) Provided that in the application of the said section 8 to this Act nothing in that section contained shall release the Corporation or any person purchasing or acquiring any lands from them from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which any such lands were or may hereafter be conveyed or leased to or otherwise acquired by the Corporation or any person from or through whom the Corporation may have derived or may hereafter derive title to the same but all such rents covenants restrictions reservations terms and conditions shall remain and be of as full force and effect and may be recovered exercised enjoyed and enforced in like manner and to the same extent as if this Act had not been passed;

Section 15 (Power to alter steps pipes areas &c.);

Section 16 (Temporary stoppage of streets).

The Act of 1927—

Section 11 (Power to enter upon property for survey and valuation);

Section 12 (Extinction of private rights of way);

Section 13 (Benefits to be set off against compensation);

Section 15 (Land laid into streets to form part thereof).

Acquisition
of ease-
ments.

24.—(1) The Corporation may in lieu of acquiring any lands for the purposes of the waterworks authorised by this Act acquire such easements or rights only in such lands as they may require for such purposes (including the making maintaining repairing inspecting

cleansing managing using working and obtaining access to such works) and may give notice to treat in respect of such easements and rights describing the nature thereof and the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such easements and rights as fully as if the same were lands within the meaning of those Acts. A.D. 1928.
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(2) As regards any lands in respect of which the Corporation have acquired easements or rights only under the provisions of this section for the purpose of such waterworks where they are respectively laid underground the Corporation shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being at all times after the completion of the waterworks shall subject to such easements or rights and any other restrictions imposed upon the owners and occupiers have the same rights of passing over such lands for all purposes of or connected with the use or enjoyment of the adjoining lands as if this Act had not passed.

(3) Every notice to treat for the acquisition of an easement or right or the imposition of any restriction shall either contain or be endorsed with notice of this provision.

25. Any paving metalling or material excavated by the Corporation in the construction of any of the street works or the river improvement work authorised by this Act from any road under their jurisdiction and control shall vest in and belong to the Corporation absolutely and may be dealt with removed and disposed of by them in such manner as they may think fit. Application of road materials excavated in construction of street works and river improvement.

26.—(1) Upon the acquisition of the lands hereinafter referred to the Corporation may appropriate and use the same for burial purposes with and as part of their existing new cemetery at London Road in the city The said lands are situate in the city and are— Enlarge-ment of cemetery

The land now forming the site of the parts of Green Lane and Mile Lane (shown on the deposited plans and described in the deposited book of reference as in the parish of St. Michael Without Coventry in the rural district of Coventry in

A.D. 1928.

the county) proposed to be stopped up under the powers of this Act and land (triangular in shape) belonging to the Right Honourable Francis Ormonde Henry Lord Cheylesmore containing an area of ten acres or thereabouts bounded on the east by the said part of Green Lane to be stopped up on the south by a straight line drawn in a south-westerly direction in continuation of the line of the northern boundary of Whitley Common for a distance of one hundred and sixty-one yards from the north-western corner of Whitley Common and on the north-west by a line generally in a north-westerly direction commencing at the western termination of the straight line hereinbefore referred to and terminating at the northern end of the said part of Green Lane to be stopped up.

(2) The said lands when appropriated for burial purposes shall form part of the said new cemetery of the Corporation and shall be subject to the provisions of this Act with regard to the cemeteries and burial grounds of the Corporation and to all the byelaws and regulations applicable to the said new cemetery or to the Corporation in respect thereof.

(3) In connection with the appropriation of the said lands for burial purposes the Corporation may stop up Green Lane aforesaid between the point of commencement of Street Work No. 7 by this Act authorised and the northern boundary of Whitley Common and Mile Lane aforesaid between a point forty-three yards or thereabouts west of the north-easterly corner of the enclosure numbered 117 on the $\frac{1}{2500}$ Ordnance map of the said parish (edition 1925 Warwickshire sheet No. XXI-16) and a point seventy-four yards or thereabouts south-west of the north-western corner of Whitley Common.

Corpora-
tion's
cemeteries
and burial
grounds to
be regulated
by Act of
1879.

27.—(1) All burial grounds and cemeteries vested in or belonging to the Corporation immediately before the passing of this Act shall be vested in and maintained and managed by the Corporation as if such burial grounds and cemeteries had been acquired and constructed by the Corporation under the powers of the Act of 1879 and the provisions of that Act shall extend and apply to every such burial ground and cemetery.

(2) The Corporation may by byelaw made under the Act of 1879 repeal any byelaws regulations tables of fees or payments and scales of charges in force with respect to any such burial ground or cemetery immediately before the commencement of this Act but until and except to the extent that they are so repealed all such byelaws regulations tables of fees or payments and scales of charges shall continue in force. A.D. 1928.
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(3) So much of the provisions of the Act of 7 & 8 Vict. c. lxxvi as relates to burial grounds or cemeteries shall be repealed but not so as to affect anything duly done or suffered thereunder prior to the commencement of this Act and subsection (2) of section 101 (Dissolution of Foleshill Burial Board and consolidation of burial grounds and powers) of the Act of 1900 and subsection (3) of section 78 (As to property and liabilities of Foleshill Parish Council as burial authority) of the Coventry Corporation (Boundary Extension) Act 1927 are hereby repealed.

(4) Nothing in this section shall affect the provisions of subsection (4) of the said section of the Coventry Corporation (Boundary Extension) Act 1927.

28. The Corporation may place and maintain at such places in the highways in the city as the watch committee of the Corporation may think fit shelters or boxes for the use of police constables. Power to
place police
shelters in
streets.

29. The Corporation may make an allowance by way of discount not exceeding five per centum on the amount due in respect of any general rate or any instalment thereof from every person who pays the same within such time after demand of the rate or after the date when any instalment falls due as the case may be as they shall prescribe and in any such case the Corporation shall make such allowance accordingly Provided that any such allowance shall in every case be of equal amount under like circumstances. Discount on
general
rate.

30.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column of that table and they shall pay off all moneys so borrowed Power to
borrow.

A.D. 1928. within the respective periods mentioned in the third column of the said table (namely) :—

1.	2.	3.
Purpose.	Amount.	Period for Repayment.
(a) For and in connection with the purchase of lands and easements.	£ 55,000	Sixty years from the date or dates of borrowing.
(b) For and in connection with the construction of the waterworks authorised by this Act.	225,000	Thirty years from the date or dates of borrowing.
(c) For and in connection with the additional cost of constructing the service tank at Coundon authorised by the Act of 1907.	34,000	Thirty years from the date or dates of borrowing.
(d) For and in connection with alterations of the Spon End Whitley and Watery Lane pumping stations and Corley reservoir of the Corporation.	19,000	Fifteen years from the date or dates of borrowing.
(e) For the provision of mains and other purposes of the water undertaking of the Corporation.	50,000	Thirty years from the date or dates of borrowing.
(f) For and in connection with the construction of the street works authorised by this Act.	65,260	Thirty years from the date or dates of borrowing.
(g) For and in connection with the improvement of the river Sherbourne authorised by this Act.	9,500	Thirty years from the date or dates of borrowing.
(h) For and in connection with the laying out of the cemetery extension authorised by this Act.	5,340	Thirty years from the date or dates of borrowing.
(i) For the payment of the costs charges and expenses of this Act.	The sum requisite.	Five years from the passing of this Act.

(2) (a) The Corporation may also with the consent of the Minister of Health borrow such further money as may be necessary for any of the purposes of this Act.

(b) Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the said Minister.

(3) The periods set forth in the third column of the table contained in subsection (1) of this section and the period referred to in subsection (2) (b) of this section are in relation to this Act the prescribed periods referred to in section 112 (Periods for repayment of principal moneys) of the Act of 1900.

31. The Corporation shall pay off all moneys borrowed by them under any statutory borrowing power and not raised by the issue of stock either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment of the sinking fund shall be made within twelve months from the date of borrowing.

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Mode of
payment off
of money
borrowed.

32.—(1) If the Corporation determine to repay by means of a sinking fund any moneys borrowed by virtue of any statutory borrowing power (except moneys raised by the issue of stock) such fund shall be formed and maintained either—

Sinking
fund.

(a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is hereinafter called a “non-accumulating sinking fund”; or

(b) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed A sinking fund so formed is hereinafter called an “accumulating sinking fund.”

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Corporation being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(4) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the moneys for the repayment of which

A.D. 1928. the fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5) (a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Corporation.

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Corporation in addition to the payments provided for by this Act.

(7) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Minister of Health that any such increase is necessary the Corporation shall increase the payments to such extent as the said Minister may direct.

(8) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions

of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the said Minister be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the said Minister be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

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(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the said Minister be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may with the consent of the said Minister discontinue the annual payments to such sinking fund until the said Minister shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the said Minister may determine.

(12) All moneys which at the commencement of this Act are standing to the credit of any sinking fund in respect of moneys borrowed otherwise than by the issue of stock and not applied in repayment thereof may be transferred to the sinking fund established under this Act and the sums so transferred shall be taken into account in calculating the future payments to be made to the sinking fund under this section.

33. The provisions of section 132 (Accounts) and section 133 (Reserve funds) of the Act of 1927 shall extend and apply to the cemeteries undertaking of the Corporation.

Application
of pro-
visions of
Act of 1927.

34.—(1) The following provisions of the Acts relating to the Corporation in this section set forth are hereby repealed :—

Repeal of
certain pro-
visions of
local Acts.

The Act 7 & 8 Vict. cap. lvi—

Section XII (Application of receipts from water-works);

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—

- Section XIII (Accounts to be kept distinct from the borough fund);
- Section XIV (Mode of keeping the accounts);
- Section XV (Further application of receipts from waterworks of the city);
- Section XVIII (Accounts of rates rateable to the poor to be kept);
- Section XIX (Power of overseers of the poor to inspect accounts Penalty for refusal to permit such inspection).

Coventry Market House Act 1863—

- Section 11 (Accounts of market house to be kept distinct from borough fund);
- Section 12 (Mode of keeping the accounts);
- Section 13 (Application of receipts from market house);
- Section 14 (Application of sinking fund);
- Section 15 (Power to borrow on mortgage);
- Section 16 (As to re-borrowing);
- Section 17 (Expenses of mortgages);
- Section 18 (Arrears may be enforced by appointment of a receiver).

Coventry Corporation (Gas Purchase) Act 1884—

- Section 46 (Power to mortgage district fund and general district rate);
- Section 48 (Regulations as to sinking fund);
- Section 49 (Power to borrow under Local Loans Act 1875).

Coventry Water Act 1889—

- Section 24 (Provisions of Public Health Act as to mortgages to apply);
- Section 26 (Power to re-borrow).

Coventry Corporation Gas Act 1898—

- Section 29 (Mode of payment off of money borrowed);
- Section 30 (Sinking fund);
- Section 36 (Application of revenue).

The Act of 1900—

A.D. 1928.

Section 102 (Expenses);

Section 113 (Method of repayment of principal moneys);

Section 115 (Investment of sinking fund);

Section 117 (Payments to interest and sinking funds how to be provided);

Section 118 (Determination as to charge of moneys);

Part XVIII (Superannuation) except section 135 (Power to grant gratuities in certain cases).

The Act of 1907—

Section 45 (Payment off of borrowed money).

Coventry Corporation Act 1913—

Section 19 (Payment off of borrowed money);

Section 20 (Separate account of motor omnibus undertaking to be kept).

The Act of 1920—

Section 125 (Rates primarily chargeable for repayment of borrowed moneys);

Section 127 (Application of revenue of gas and electricity undertakings).

Coventry Corporation Act 1921—

Part III (Superannuation);

Section 43 (Rates primarily chargeable for repayment of borrowed moneys).

(2) As from the first day of April nineteen hundred and twenty-nine section 29 (Rates payable by owners of small houses) of the Act of 1907 shall be repealed.

35. In calculating under subsection (2) of section 234 (Regulations as to exercise of borrowing powers) of the Public Health Act 1875 the amount which the Corporation may borrow all moneys which the Corporation are empowered to borrow under any local Act or Order shall be excluded.

As to section 234 of Public Health Act 1875.

A.D. 1928.

—
Application
of pro-
visions of
Acts of
1900 1907
1911 and
1913.

36. The following sections of the Act of 1900 the Act of 1907 the Act of 1911 and the Coventry Corporation Act 1913 shall with any necessary modifications extend and apply to the exercise of the powers of this Act as if the same were re-enacted in this Act (namely) :—

The Act of 1900—

Section 145 (Audit of accounts).

The Act of 1907—

Section 48 (Inquiries by Local Government Board) Provided that for the purposes of this Act subsection (2) of the said section 48 shall be read and have effect as if the words “five guineas” were substituted for the words “three guineas” therein.

The Act of 1911—

Section 47 (Expenses of execution of Act);

Section 54 (Consent of Corporation to be in writing);

Section 57 (Confirmation of byelaws).

Coventry Corporation Act 1913—

Section 21 (Power to re-borrow).

Costs of
Act.

37. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund and general rate or out of moneys to be borrowed under this Act for that purpose.

The SCHEDULE referred to in the
foregoing Act.

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LIST OF PROPERTIES OF WHICH PART ONLY MAY
BE TAKEN.

Parish.	Number on deposited Plans.
Parish of Keresley - -	50.
Parish of the Holy Trinity Without Coventry (now city and parish of Coventry).	159 160 161 162 163 164 165 166 167 168 169 170 171 172.
City and parish of Coventry	145 146 147 148 149 150 151 154 155 195 196 197 198 199 200 201 202 203 204 205 206 207 208 209 211 212 213 214 215 223 225 226 227 228 229 230 231 233 234 235

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